IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT – IV

Item No. 406

Restoration Application /54/ND/2025 in CP(CAA)41/ND/2025

IN THE MATTER OF:

Prima Associates Private Limited ... Applicant
With
Wagishwari Estates Private Limited

Under Section 230-232 of the Companies Act, 2013.

Order delivered on 28.10.2025

CORAM:
SHRI MANNI SANKARIAH SHANMUGA SUNDARAM,
HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Mr. Pushpendra Kumar, Mr. Abhishek Kumar
Mr. Abhishek Dwivedi, Advs.
For the Respondent :

HYBRID HEARING (PHYSICAL & VC)

ORDER

Restoration Application /54/ND/2025

This is an application filed under Rule 48(2) read with Rule 11 of NCLT Rules, 2016 for restoration of CA (CAA) 17/ND/2025 and 41/ND/2025. The prayers made in the application are mentioned below:

a) Allow the present application by passing an order for restoring the application passed in the second motion of the merger application(s), which was dismissed on 23/09/2025, exercising its power under rule 48(2) r/w rule 11 of NCLT Rules 2016. And/or

b) Restore the company application for the merger of the transferor and transferee companies to its original position and decide on merit, in the interest of justice. And/or

c) Pass such other and further orders as this Hon'ble Tribunal may deem fit and proper in the interest of justice.

Learned Counsel for the applicant is present physically. Applicant is directed to take steps to serve the notice to Official Liquidator and file affidavit of proof of service. Official Liquidator is directed to file the reply within one week. List on 25.11.2025.

Sd/-
ATUL CHATURVEDI
MEMBER (TECHNICAL)

Sd/-
MANNI SANKARIAH SHANMUGA SUNDARAM
MEMBER (JUDICIAL)

MUKESH